

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

FORMUKLEEN, INC., *Complainant*

v.

TOP SHIPPING SYSTEMS, CORP., *Respondent*.

DOCKET NO. 25-08

Served: June 5, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER FOLLOWING STATUS CONFERENCE

On June 2, 2026, I issued an Order Setting Status Conference that ordered the parties to appear for a status conference via Teams on June 4, 2026, at 10:00 a.m. EDT. The parties were to be prepared to discuss remaining discovery issues. I held the conference on June 4, 2026. Complainant appeared by means of its representative; Complainant's principals were in attendance also. Respondent appeared through its principals.

As stated during the June 4 Status Conference, this Order is intended to serve as a summary of the status conference, and to be a document that the parties may reference and cite going forward.

The following points were discussed:

- Respondent filed Respondent's Motion for Clarification, Protective Relief, and Guidance Regarding Scope of Discovery ("MFR") on May 29, 2026. Complainant responded on May 31, 2026. In the MFR, Respondent sought clarification regarding its discovery obligations vis-à-vis 54 historical transactions between the parties. During the conference, Complainant clarified that it is not focused on the 54 historical transactions, but instead on the transportation of the two containers at issue, namely CSHU40474424 and BSIU8431017.
- Respondent produced documents to Complainant with redactions. As noted in my Order Regarding Complainant's Motions of May 9, 2029, and Addressing Deferred Ruling Regarding Complainant's Motion for Reasonable Discovery (the "May 21 Order"),¹ it is inappropriate for a party to produce documents in discovery with redactions (at least

¹ Shortly before I issued my May 21 Order, Complainant filed Complainant's Motion for Expediting Ruling, Reduction of Response Time, And to Preclude Further Delay by Non-Curative Supplemental Productions ("MFE"). I did not discuss or rule upon the MFE in my May 21 Order, however, it was mooted by the issuance of the MFE. Thus, to the extent that a ruling on the MFE is still necessary, the MFE is **DENIED** as moot.

without a claim of privilege). The documents, however, can be produced subject to the Protective Order, which I entered on November 21, 2025, and which limits the parties' ability to disseminate confidential information. Further, if a document with confidential information is to be used in a motion, the party seeking to use the document can then move to have it filed publicly with appropriate redactions, as set forth in the Initial Order and Commission's Rules. Respondent indicated that it could have these documents re-produced by June 10, 2026.

- Complainant asserts that Respondent still has not produced all third-party communications related to the two containers at issue. Respondent maintains that it has produced all third-party communications related to the two containers at issue. In order to advance this issue towards resolution, Complainant indicated that it will take third-party discovery and will take depositions of Respondent's corporate designee² and/or individuals who work for Respondent. Accordingly, I will hold Complainant's Renewed Motion to Enforce April 1, 2026 Order as to Requests for Production Nos. 4 and 7 and for Sanctions (the "Renewed Motion") in abeyance, and will permit Complainant to amend its Renewed Motion after it conducts its additional discovery.

Based on the above, it is **HEREBY ORDERED** that Respondent's MFR is **GRANTED IN PART** to the extent it seeks clarification of its obligations regarding the 54 historical shipments, as noted above. Respondent is still required to produce all third-party communications related to the two subject shipments. It is

FURTHER ORDERED that Respondent is to correct its production of partially redacted documents no later than **June 10, 2026**, meaning that to the extent Respondent produced documents with redactions previously, it is to produce documents without redactions, though Respondent may produce these documents subject to the Protective Order entered in this case. It is

FURTHER ORDERED that Complainant's Renewed Motion is **held in abeyance**. It is

FURTHER ORDERED that Complainant may amend its Renewed Motion with additional discovery materials. It is

² The Commission's Rules permit a party to "name as the deponent" an organization. (46 C.F.R. § 502.143(b)(6)). In the deposition notice, the party seeking the deposition of an organization must "describe with reasonable particularity the matters for examination." (*Id.*). In response, the named organization must designate one or more individuals to testify on its behalf regarding to the matters described in the deposition notice. "The persons designated must testify about information known or reasonable available to the organization." (*Id.*; *see also Bigsby v. Barclays Capital Real Estate, Inc.*, 329 F.R.D. 78, 81 (S.D.N.Y. 2019) (citations omitted) ("The organization 'must prepare the designee to the extent matters are reasonably available, whether from documents, past employees, or other sources.'"); *Prasad v. George Washington Univ.*, 325 F.R.D. 1, 6 (D.D.C. 2018) (stating that the rule "requires an organization to identify a person knowledgeable on a noticed topic and to prepare that person to testify as to that topic, thus binding the entity[.]")).

FURTHER ORDERED that Respondent is not required to respond to the Renewed Motion until after Complainant amends its Renewed Motion. It is

FURTHER ORDERED that the parties are to submit a joint motion to amend the remaining discovery and briefing schedule no later than **June 10, 2026**. The joint motion should contemplate a deadline by which Complainant will amend its Renewed Motion, and a response deadline for Respondent.

Richard C. Ambrow Jr -S

Richard Ambrow
Administrative Law Judge